

## 24SMCV01071 24SMCV01071

County: los-angeles

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Case Number: 24SMCV01071 Hearing Date: July 9, 2026 Dept: 205

Superior Court of California

County of Los Angeles

Beverly Hills Courthouse | Department 205

DAVID GOMEZ,

Plaintiff,

v.

NEXT HEALTH, INC., et al.,

Defendants.

Case No.: 24SMCV01071

Hearing Date: 7/9/26

Trial Date: 9/21/26

[TENTATIVE] RULING RE:

Motion to Compel Deposition

Background

On March 7, 2024, Plaintiff David Gomez ("Plaintiff") commenced this action against Defendants Next Health, Inc., Next Health Century City, Next Health Franchising LLC, Next Health International LLC, Next Health Newport Beach Inc., and DOES 1 to 10. On May 14, 2024, Plaintiff filed the operative First Amended Complaint ("FAC") against Defendants Next Health, Inc. ("NHI") and DOES 1 to 10 (collectively, "Defendants"), asserting causes of action for: (1) Negligence and (2) Strict Products Liability.

On June 3, 2024, NHI filed a Demurrer with Motion to Strike the FAC. The matter came for hearing on July 16, 2024; the demurrer was sustained in part as the second cause of action without leave to amend, overruled in part as to the first cause of action, and the motion to strike was denied.

On July 30, 2024, NHI filed an Answer to the FAC.

On June 5, 2026, Plaintiff filed the instant Motion to Compel Deposition. Any opposition would have been due on June 25, 2026. To date, no opposition has been filed, presumably as a result of the Court's recent denial of Defendant's motion for a protective order.

#### Motion to Compel Deposition Standard

Pursuant to the Code of Civil Procedure Section 2025.010, any party may obtain discovery (subject to the scope and restrictions provided by law) "by taking in California the oral deposition of any person, including any party to the action. The person deposed may be a natural person, an organization such as a public or private corporation, a partnership, an association, or a governmental agency." (Code Civ. Proc., § 2025.010.) A deposition subpoena is the only means by which discovery may be obtained from a nonparty. (*Unzipped Apparel, LLC v. Bader*, (2007) 156 Cal.App.4th 123, 127.)

"If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." (Code Civ. Proc., § 2025.450, subd. (a).)

#### Meet and Confer

"The motion shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance." (Code Civ. Proc., § 2025.450, subd. (b)(2).) Specifically, "[a] meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." (Code Civ. Proc., § 2016.040, subd. (a).) "[A]ttempting informal resolution means more than the mere attempt by the discovery proponent 'to persuade the objector of the error of his ways' and 'a reasonable and good faith attempt at informal resolution entails something more than bickering with [opposing] counsel.... Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate.'" (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1294.)

Here, Plaintiff advances the declaration of its counsel of record, Alex Farzan, attesting that the parties engaged in meet and confer efforts between April 8, 2026 and April 14, 2026. (Farzan Decl., ¶¶11-12, Exs. G-H.) Thereafter, the parties were engaged in motion practice regarding NHI's motion for protective order and attended an Informal Discovery Conference ("IDC"). (Id.) Furthermore, the Court expressly stated that Plaintiff had fulfilled his IDC obligation and was free to file the present motion. (Min. Order, 5/28/26 at p. 1 ["The Court finds that both parties have satisfied their IDC obligation and may file their discovery motion(s), if needed."].)

Thus, the Court finds that Plaintiff has satisfied his meet and confer requirement.

## Analysis

Plaintiff moves for an order compelling the depositions of Kevin Peake (President/Co-Founder of NHI) and Dr. Darshan Shah (Founder/CEO of NHI) on the grounds that NHI refused to produce them for depositions despite: (1) Mr. Peake personally verified NHI's written discovery responses to Plaintiff's Form Interrogatories (Set One) and Requests for Production of Documents (Set One) based on his personal knowledge of the facts of this case (Farzan Decl., ¶4, Exs. A-B); (2) NHI's current person most knowledgeable ("PMK"), Amy Holman and former PMK, Kai Belveal identified Mr. Peake and Dr. Shah as the having personal knowledge of the material issues of this case (Farzan Decl., ¶¶6-7); (3) Plaintiff exhausted less intrusive discovery methods including written discovery, two PMK depositions, and meet and confer efforts (Farzan Decl., ¶¶3, 5-9, 12); and (4) this Court advised that these depositions would likely be compelled following the IDC.

Here, Plaintiff served deposition notices for Mr. Peake and Dr. Shah on March 20, 2026 set for April 21, 2026 and April 22, 2026, respectively. (Farzan Decl., ¶10, Exs. E-F.) As briefly mentioned above, the parties engaged in meet and confer efforts regarding the taking of these depositions. (Id., ¶¶11-12, Exs. G-H.) The parties also engaged in motion practice pertaining to NHI's motion for protective order, which was denied on June 26, 2026. (Farzan Decl., ¶12; Min. Order, 6/26/26.) Consistent with the Court's advisement at the IDC and tentative ruling on the motion for protective order, Plaintiff has shown that the deposition testimonies of Mr., Peake and Dr. Shah are relevant to the material issues and reasonably calculated to discover facts to support any claims and defenses in this case. Specifically, Mr. Peake and Dr. Shah have been identified as material witnesses with personal knowledge of NHI's decision to discontinue the use of the Vivo Wellness infrared sauna pods and what became of the Subject Light Bed; identity of the entity that sold or supplied the Subject Light Bed to NHI; and Dr. Shah's medical oversight of the services at issue and his assessment of the subject incident. (Mot. at 8:24-10:13.) NHI does not dispute these facts, thus concedes on these issues. (See California Rules of Court Rule 3.1113(a); see also Rule 3.1320(f); *Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20 [the party who fails to argue an issue abandons that issue].)

## Request for Sanctions

"If a motion under [Code of Civil Procedure, section 2025.450, subdivision (a)] is granted, the court shall impose a monetary sanction . . . in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2025.450, subd. (g)(1).)

"The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed." (Cal. Rules Ct., Rule 3.1348, subd. (a).) "[T]he burden is on the moving party to show (by declarations) the facts essential to an award of sanctions: e.g., the opposing party's failure to make discovery, reasonable efforts to resolve the matter informally, etc. The burden then shifts to the party against whom sanctions are being sought to establish some excuse or justification for the conduct in question." (Weil & Brown, Cal. Practice Guide: Civ. Pro. Before Trial (The Rutter Group June 2021 Update) ¶ 8:2015.)

Here, Mr. Farzan seeks discovery sanctions in the amount of \$10,000.00 against NHI for having to bring the present motion, meet and confer correspondence, motion practice for the motion for protective order, preparing and filing Joint IDC statement, attending the IDC, reviewing an opposition to this present motion, preparing a reply for this present motion, and attending the hearing on the present motion for a total of 20.0 hours at an hourly rate of \$500.00. However, no NHI did not oppose the present motion, thus no reply brief has been filed. As such, the Court will award monetary discovery sanctions in the reduced amount of \$5,000.00 for 10.0 hours at an hourly rate of \$500.00.

## Conclusion

Based on the foregoing, Plaintiff David Gomez's Motion to Compel Deposition is GRANTED. The Request for Monetary Discovery Sanctions is also GRANTED.

Defendant Next Health Inc. is ordered to produce Kevin Peake and Dr. Darshan Shah for their respective depositions no later than July 31, 2026, or any date thereafter upon stipulation of Plaintiff's counsel.

Defendant Next Health, Inc. is also ordered to pay \$5,000.00 in monetary discovery sanctions within 30 days of this order.

Dated: July 9, 2026

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Edward B. Moreton, Jr.

Judge of the Superior Court